

The Press Council Of India (Grant Of Certified Copies) Regulations, 1999

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The Press Council Of India (Grant Of Certified Copies) Regulations, 1999

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The Press Council Of India (Grant Of Certified Copies) Regulations, 1999

Rule THE-PRESS-COUNCIL-OF-INDIA-GRANT-OF-CERTIFIED-COPIES-REGULATIONS-1999 of 1999

Published on 1 October 1999

Commenced on 1 October 1999

[This is the version of this document from 1 October 1999.]

[Note: The original publication document is not available and this content could not be verified.]

The Press Council Of India (Grant Of Certified Copies) Regulations, 1999

Notification dated 1.10.1999, published vide Notification Gazette of India, Extraordinary, Part 3, Section 4, dated 8.1.2000.

19.

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In exercise of the powers conferred by clause (e) of section 26 of the Press Council Act, 1978 (37 of 1978

), the Press Council of India hereby makes the following Regulations, namely:-

Brought into force on 8.1.2000.

1.

Title and commencement

-(i) These regulations may be called the Press Council of India (Grant of Certified Copies) Regulations, 1999.

(ii)

They shall come into force with effect from the date of their publication in the Official Gazette.

2.

Copy to be granted to person entitled

.-A copy of the record pertaining to the complaints brought before the Press Council of India under section 14(1) or 15(4) of the Act may be granted in the manner prescribed by these regulations to any person legally entitled to receive it.

3.

Party entitled to copy of orders

-(i) A party to a complaint is entitled to obtain, free of cost, a copy of final order of the Council; and

(ii)

Party entitled to copy of record (documents).-A party to a complaint is entitled to obtain, at any stage of the proceedings, copy of the record/document filed before the Council or an extra copy of the order on payment of fee of one rupee per page, irrespective of the number of words or lines on that page.

4.

Grant of copy of document to a stranger

.-A stranger to a complaint may be granted on payment of Re. 1 per page a copy of any document, he or she shows to the satisfaction of Secretary, Press Council of India that he or she has sufficient reason for obtaining such a copy.

5.

Extra fee for urgent copy

.-On an application for "urgent copy", i.e., copy to take precedence over other copying work, an uniform extra fee of rupee one per page shall be charged.

6.

Mode of payment of copying fee

-(i) All applications for the grant of certified copies whether by parties or by strangers shall be accompanied with a non-refundable fee of rupees five in case of ordinary copy and rupees ten in case of urgent copy in the form of Postal Order or in cash.

(ii)

When the fee chargeable for the grant of certified copies whether in the case of ordinary or urgent copy, is more than rupees five or rupees ten, the balance amount shall be deposited by the applicant in cash with the cashier or the Press Council of India between 10.30 a.m. to 4.30 p.m. before the actual delivery of the copy.

7.

Time of delivery of copy

-(i) Urgent copy shall be delivered to the applicant as far as possible within three days and ordinary copy within ten days from the date of submission of an application.

(ii)

An application shall be treated as effective only if initial deposit as at Regulation 6(i) above is made.

(iii)

If the applicant does not claim the copy on the date mentioned above or within six months thereafter, the copy so prepared may be destroyed and the copying fee deposited by the applicant shall be forfeited.

8.

Credit of copying fee

.-Copying fee shall be credited to the Press Council's Account.

9.

Contents of application

.-Every application for supply of a copy shall contain the following particulars, namely:-

(a)

Number of the case.

(b)

Name of the parties.

(c)

Whether the case is pending or disposed of

(d)

The name(s) of document(s) of which copy is required.

(e)

In the case of a copy of the document.

(f)

Locus to obtain copy of the document.

(g)

The name and full postal address of the applicant.

(h)

Postal Order No. and the amount.

10.

Endorsement to be made on the copy before delivery

.-Every copy, before its delivery to the concerned applicant, shall be stamped indicating therein:-

(a)

Serial number of the "Application".

(b)

Name of the Applicant.

(c)

Date of presentation of application for copy.

(d)

Number of pages.

(e)

Copying fee charged/urgent or ordinary.

(f)

Date of preparation of copy.

(g)

Date of delivery of the copy to the applicant.

11.

All copies supplied by the Secretariat of the Council shall be certified to be true copies by the Officer-in-charge of the Meeting/Complaints Branch or the Officer so authorised by the Secretary on that behalf and shall also bear the seal of the Council. The Officer-in-charge of the Branch or the Officer so authorised shall also be initial every alteration on the copy.

12.

A register of applications for certified copies shall be maintained in the form as given at Annexure 1.

13.

Postal charges

.-If the applicant desires that the copy be sent to him by post, he/she should also send postal charges which are sufficient enough to cover the registration and postal charges.

Annexure-

S. No

Date of application

Amount and the number of the Postal Order

Name of the applicant

Date and the balance amount of copying fee deposited

Date of delivery of the copy

Sign, of the person

-1

-2

-3

-4

-5

-6

-7

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